

HOUSE No. 4167

The Commonwealth of Massachusetts

PRESENTED BY:

Danillo A. Sena and Simon Cataldo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Acton to establish a minimum charge for a checkout bag.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/6/2025</i>
<i>Simon Cataldo</i>	<i>14th Middlesex</i>	<i>1/16/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/24/2025</i>

HOUSE No. 4167

By Representatives Sena of Acton and Cataldo of Concord, a petition (accompanied by bill, House, No. 4167) of Danilo A. Sena and Simon Cataldo (by vote of the town) that the town of Acton be authorized to establish a minimum charge for checkout bags in said town. Municipalities and Regional Government. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2111 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Acton to establish a minimum charge for a checkout bag.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The following words, unless the context clearly requires otherwise, shall
2 have the following meanings:

3 “Checkout Bag” shall mean a bag provided by a retail establishment to a customer at the
4 point of sale. Checkout bags shall not include any type of bag, used by a retail establishment, or
5 provided to its customer for:

- 6 1. prescription medications,
- 7 2. produce, bakery items, and other food items to keep such items fresh or unsoiled,
- 8 3. preventing frozen food items, including ice cream, from thawing,

9 4. containing products or items that are saturated, wet, prone to leak, or need to be
10 immersed in a liquid,

11 5. containing products or items that are granular, powdery, dirty or greasy,

12 6. protecting an item from damage or contamination, or to protect a second item when
13 both are carried together from the retail establishment,

14 7. protecting articles of clothing on a hanger,

15 8. items that contain any herbicide, pesticide, solvent, corrosive, automotive type fluid or
16 other chemical, that can be harmful to public health, whether or not, the item is prepackaged in a
17 sealed container or bag,

18 9. protecting small items from loss,

19 10. any item that requires the use of a certain type bag, under federal and state laws and
20 regulations.

21 “Retail Establishment” shall mean any business facility that sells goods directly to the
22 consumer whether for or not for profit, including but not limited to, retail stores, restaurants,
23 pharmacies, convenience and grocery stores, liquor stores, and seasonal and temporary
24 businesses.

25 SECTION 2.

26 (a) Notwithstanding any general or specific law to the contrary, any retail establishment
27 which makes available checkout bags in the Town of Acton shall charge for each such bag a fee

equal to or greater than \$0.15 per checkout bag, as established by regulations to be duly promulgated by the Acton Board of Health.

(b) All monies collected pursuant to this section shall be retained by the retail establishment.

(c) Any charge for a checkout bag shall be separately stated on a receipt provided to the customer at the time of sale and shall be identified as the “checkout bag charge” thereon.

SECTION 3.

(a) The Health Agent for the Acton Board of Health or his/her designee shall have authority to oversee this Act and any regulations promulgated thereunder.

(b) The Acton Board of Health may adopt and amend rules and regulations to effectuate the purposes of this Act.

SECTION 4. If any provision of this Act is declared to be invalid or unenforceable, the other provisions shall be severable and shall not be affected thereby.

SECTION 5. This Act shall take effect three months after its passage.